



CHAPTER v

An Act to confirm a Provisional Order made by the Minister of Transport and Civil Aviation under the Bournemouth Corporation Act 1930 relating to Bournemouth Corporation trolley vehicles.

[27th July 1955.]

WHEREAS under the authority of section one hundred and two of the Bournemouth Corporation Act 1930 the Minister of Transport and Civil Aviation has made the Provisional Order set out in the schedule to this Act annexed:

And whereas a Provisional Order made by the Minister of Transport and Civil Aviation under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport and Civil Aviation under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

2. This Act may be cited as the Bournemouth Corporation Short title. (Trolley Vehicles) Order Confirmation Act 1955.

SCHEDULE

BOURNEMOUTH CORPORATION (TROLLEY VEHICLES)

Provisional Order authorising the mayor aldermen and burgesses of the borough of Bournemouth to use trolley vehicles upon an additional route in the borough of Christchurch.

Short and
collective titles.

1.—(1) This Order may be cited as the Bournemouth Corporation (Trolley Vehicles) Order 1955.

(2) The Bournemouth Corporation (Trolley Vehicles) Act and Order 1930 and 1937 and this Order may be cited together as the Bournemouth Corporation (Trolley Vehicles) Act and Orders 1930 to 1955.

Interpretation.

2. In this Order the following expressions have the respective meanings hereby assigned to them namely:—

“the Act of 1930” means the Bournemouth Corporation Act 1930;

“the Act of 1933” means the Local Government Act 1933;

“the Corporation” means the mayor aldermen and burgesses of the borough of Bournemouth;

“the Minister” means the Minister of Transport and Civil Aviation;

“trolley vehicle” has the meaning assigned to it by section 4 (Interpretation) of the Act of 1930.

Additional
trolley vehicle
route.

3.—(1) The Corporation may work and use trolley vehicles upon the following route in the borough of Christchurch in addition to any routes upon which they are already authorised to use trolley vehicles (namely):—

A route (9·1 chains or thereabouts in length) commencing at the junction of Barrack Road with High Street passing along Barrack Road to its junction with the reconstructed road connecting Barrack Road with Bargates and passing along the reconstructed road and terminating at its junction with Bargates.

(2) The application of the provisions of the Act of 1930 as amended by the Road Traffic Act 1930 to this Order in accordance with subsection (1) of section 102 of the Act of 1930 shall have effect with any necessary modification and so far only as the same are applicable for the purpose and for the purpose of such application the expressions “trolley vehicles” and “trolley vehicle route” where used in the Act of 1930 shall be deemed to include the trolley vehicles and the route authorised by this Order and the expression “trolley vehicle undertaking” where used in the Act of 1930 shall include the trolley vehicles and trolley vehicle route authorised by this Order:

Provided that in such application to this Order—

(a) section 94 (Vehicles not to be deemed light locomotives or motor cars) of the Act of 1930 shall have effect as if subsection (1) were omitted therefrom;

(b) section 124 (Restricting running of omnibuses in competition) of the Act of 1930 shall not apply to the route authorised by this Order.

4. If the Corporation shall not have commenced to use trolley vehicles upon the route authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister may upon the application of the Corporation allow the powers conferred by this Order shall so far as they relate to the use of trolley vehicles upon that route cease to be exercisable.

Period for completion of trolley vehicle equipment.

5. All regulations and byelaws relating to the trolley vehicles of the Corporation and made in pursuance of the Act of 1930 or any other statutory enactment shall with any necessary modifications apply to the trolley vehicles used by the Corporation in pursuance of this Order.

Application of byelaws.

6. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Order and section 290 of the Act of 1933 shall apply accordingly.

Inquiries by Minister.

7. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

8. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Costs of Order.

Table of Statutes referred to in this Act

Short title	Session and chapter
Bournemouth Corporation Act 1930	20 & 21 Geo. 5. c. clxxxi.
Road Traffic Act 1930	20 & 21 Geo. 5. c. 43.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Bournemouth Corporation (Trolley Vehicles) Order 1937 (confirmed by the Bournemouth Corporation (Trolley Vehicles) Confirmation Act 1938)	1 & 2 Geo. 6. c. xxi.
Town and Country Planning Act 1947	10 & 11 Geo. 6. c. 51.

Ch. v

*Bournemouth Corporation
(Trolley Vehicles) Order
Confirmation Act, 1955*

4 ELIZ. 2

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d net

PRINTED IN GREAT BRITAIN

(38537)